Section K: Client Rights

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Effective date: Jan. 1, 2027. Review cycle: once a year.

Regulatory basis: K.A.R. 28-51-111(a); K.A.R. 28-51-103(b)(1)(H); KDHE Application Guide, Client Rights section.

K-1. Client Rights Policy

The governing body of Golden Rule Home Care & Concierge Services LLC adopts the client bill of rights in K-2.[1] The rights apply equally to every client.[2] Before services start, the administrator gives each client, or the client's responsible party, a written copy of the bill of rights, explains it, and has the client or designee sign the acknowledgment in K-3.[3] The signed form is kept in the client record.[4]

K-2. Client Bill of Rights

As a client of Golden Rule Home Care & Concierge Services LLC, you have:[5]

1. The right to choose health care professionals and the right to communicate with those health care professionals;[6]
2. The right to participate in the planning of your plan of care and the right to appropriate instruction and education about the plan of care;[7]
3. The right to supportive care services provided without discrimination as to race, color, creed, sex, or national origin;[8]
4. The right to receive supportive care services only if the agency has the ability to provide safe, professional care at the level of intensity needed;[9]
5. The right to reasonable continuity of care;[10]
6. The right to be advised in advance of any change in the plan of care before the change is made;[11]
7. The right to confidentiality of all client records, communications, and personal information;[12]
8. The right to review all health records about you unless medically contraindicated in the client record by your physician, nurse practitioner, clinical nurse specialist, or physician assistant;[13]
9. The right to be referred to another home health agency if you are denied supportive care services for any reason;[14]
10. The right to voice grievances and suggest changes in services or in the staff providing them, without fear of reprisal or discrimination;[15]
11. The right to be fully informed of agency policies and charges for services, including eligibility for, and the extent of payment from, third-party payers, before receiving care, and to be told how much you may have to pay yourself;[16]

12. The right to be free from verbal, physical, and psychological abuse and to be treated with dignity;[17]
13. The right to have your property treated with respect;[18]
14. The right to be advised in writing of the KDHE toll-free complaint telephone number; and[19]
15. The right to be free from the use of restraints in the home setting.[20]

KDADS hotline for KDHE complaints: 1-800-842-0078, weekdays 8 a.m. to 5 p.m.[21]

K-3. Client Rights Acknowledgment Form

I received a written copy of the Golden Rule Home Care & Concierge Services LLC Client Bill of Rights.[22] It was explained to me, and I had the chance to ask questions.[22]

Client name: _____

Client or designee signature: _____

Date: _____

If signed by a designee, name and relationship: _____

Agency representative: _____ **Date:** _____

K-4. Grievance Process

A client, family member, or responsible party may raise a concern or complaint at any time by calling (785) 323-0104, emailing goldenrulehccs@gmail.com, or telling any staff member.[23] The administrator logs the grievance with the date and details, contacts the person within two business days, and gives a response in writing once the review is done.[24] No client loses services or is treated differently for raising a concern.[25] Every client may also call the KDADS hotline for KDHE complaints at 1-800-842-0078, weekdays 8 a.m. to 5 p.m.[21]

A grievance about the administrator is investigated by the alternate administrator, as set in B-1. The alternate is named in Appendix K-A, Grievance Reviewer.[24] The appendix is updated whenever the reviewer changes.[26]

Adoption

The governing body of Golden Rule Home Care & Concierge Services LLC adopts the policies in this section.[27] Taylor Anderson, as sole member and owner of the LLC, approves them and reviews them once a year or sooner when a rule changes.[28]

Signature: _____ **Date:** _____

Taylor Anderson, Owner, Golden Rule Home Care & Concierge Services LLC

Effective date: Jan. 1, 2027. Next review date: Jan. 1, 2028.

Appendix K-A. Grievance Reviewer

This person reviews any grievance about the administrator, as set in K-4.[24]

Reviewer name: Hayley Hynek

Role: Alternate administrator

Phone: _____ **Email:** _____

Date named: _____ **Approved by:** _____

[TAYLOR TO NAME LATER: phone, email, and date named for Hayley Hynek.]

Client Review

Client redlines: mark any changes on this section, then sign and date below. A digital signature (for example DocuSign) is accepted in place of ink.

Client signature: _____

Printed name: _____

Date: _____

Client signature (digital)

Date signed

Notes

1. K.A.R. 28-51-111(a). Required: The governing body establishes a client bill of rights that includes the 15 listed rights. Source: Kansas Register, May 5, 2022.
2. K.A.R. 28-51-111(a). Required: The bill of rights applies equally to all clients. Source: Kansas Register, May 5, 2022.
3. K.A.R. 28-51-103(b)(1)(H); K.A.R. 28-51-111(a)(11). Required: The administrator ensures each admitted client receives the bill of rights in writing, and clients are told of policies and charges before receiving care. Explaining it and getting a signed acknowledgment is agency choice. Source: Kansas Register, May 5, 2022.
4. No state or federal rule applies; agency choice. Framing source: K.A.R. 28-51-110(c), client record contents, Kansas Register.
5. K.A.R. 28-51-111(a). Required: The listed rights are included in the bill of rights. Source: Kansas Register, May 5, 2022.
6. K.A.R. 28-51-111(a)(1). Required: The right to choose health care professionals and to communicate with them. Source: Kansas Register, May 5, 2022.
7. K.A.R. 28-51-111(a)(2). Required: The right to take part in planning the plan of care and to appropriate instruction and education about it. Source: Kansas Register, May 5, 2022.
8. K.A.R. 28-51-111(a)(3). Required: The right to services without discrimination as to race, color, creed, sex or national origin. Source: Kansas Register, May 5, 2022.
9. K.A.R. 28-51-111(a)(4). Required: The right to services only if the licensee can provide safe, professional care at the level of intensity needed. Source: Kansas Register, May 5, 2022.
10. K.A.R. 28-51-111(a)(5). Required: The right to reasonable continuity of care. Source: Kansas Register, May 5, 2022.
11. K.A.R. 28-51-111(a)(6). Required: The right to be advised before any change in the plan of care. Source: Kansas Register, May 5, 2022.
12. K.A.R. 28-51-111(a)(7). Required: The right to confidentiality of all client records, communications and personal information. Source: Kansas Register, May 5, 2022.
13. K.A.R. 28-51-111(a)(8). Required: The right to review all health records unless medically contraindicated in the record by the physician, nurse practitioner, clinical nurse specialist or physician assistant. Source: Kansas Register, May 5, 2022.
14. K.A.R. 28-51-111(a)(9). Required: The right to be referred to another home health agency if denied services for any reason. Source: Kansas Register, May 5, 2022.
15. K.A.R. 28-51-111(a)(10). Required: The right to voice grievances and suggest changes in services or staff without fear of reprisal or discrimination. Source: Kansas Register, May 5, 2022.
16. K.A.R. 28-51-111(a)(11). Required: The right to be fully informed of policies and charges, including third-party payment, before receiving care, and of how much the client could have to pay. Source: Kansas Register, May 5, 2022.
17. K.A.R. 28-51-111(a)(12). Required: The right to be free from verbal, physical and psychological abuse and to be treated with dignity. Source: Kansas Register, May 5, 2022.
18. K.A.R. 28-51-111(a)(13). Required: The right to have property treated with respect. Source: Kansas Register, May 5, 2022.
19. K.A.R. 28-51-111(a)(14). Required: The right to be advised in writing of the department's toll-free complaint number. Source: Kansas Register, May 5, 2022.
20. K.A.R. 28-51-111(a)(15). Required: The right to be free from the use of restraints in the home setting. Source: Kansas Register, May 5, 2022.
21. K.A.R. 28-51-111(a)(14); KDHE Complaint Hotline page. Required: Clients are advised in writing of the toll-free complaint number. KDHE's page lists the KDADS hotline, 800-842-0078, Monday through Friday, 8 a.m. to 5 p.m., for home health agency complaints; KDHE contracts with KDADS for intake. Source: Kansas Register, May 5, 2022; KDHE Complaint Hotline.
22. No state or federal rule applies; agency choice. Framing source: K.A.R. 28-51-111, client bill of rights, Kansas Register.
23. K.A.R. 28-51-111(a)(10). Required: Clients may voice grievances and suggest changes without fear of reprisal or discrimination. No rule found sets a grievance procedure, so the steps and timelines are agency choice. Source: Kansas Register, May 5, 2022.
24. No state or federal rule applies; agency choice. Framing source: K.A.R. 28-51-111(a)(10), right to voice grievances, Kansas Register.
25. K.A.R. 28-51-111(a)(10). Required: Clients may voice grievances without fear of reprisal or discrimination. Source: Kansas Register, May 5, 2022.
26. No state or federal rule applies; agency choice.

27. K.A.R. 28-51-103(a)(3). Required: The governing body adopts, revises and approves the agency's policies and procedures as needed. Source: Kansas Register, May 5, 2022.
28. K.A.R. 28-51-103(a)(3). Allowed: The governing body revises policies as needed. A yearly review is agency choice. Source: Kansas Register, May 5, 2022.